

Contains Nonbinding Recommendations

information or protocol changes occur during the conduct of the study, additional information may need to be given to the subject, and/or the subject may need additional opportunities to ask questions and receive answers throughout the clinical investigation (see [section III.C.5](#), “Providing Significant New Findings to Subjects,” and [Frequently Asked Question #16](#)).

III. FDA INFORMED CONSENT REQUIREMENTS AND DISCUSSION

The informed consent process and consent form must meet the general requirements of 21 CFR 50.20, and must include the basic elements of informed consent required by 21 CFR 50.25(a) (when used, a short form written consent document states that the elements of informed consent required by 21 CFR 50.25 have been presented orally; see [section III.E.4.b](#) “Short Form” for more details). If appropriate to the clinical investigation, one or more of the additional elements of informed consent at 21 CFR 50.25(b) must also be addressed. For “applicable clinical trials” as defined in 42 U.S.C. 282(j)(1)(A) initiated on or after March 7, 2012, an additional element of informed consent (i.e., inclusion of the specified statement regarding ClinicalTrials.gov) is required by 21 CFR 50.25(c).¹⁵ The text of 21 CFR 50.20 and 21 CFR 50.25 is set out in italics below, followed by a discussion of each regulation.

A. General Requirements for Informed Consent

21 CFR 50.20:

- *Except as provided in 50.23, and 50.24, no investigator may involve a human being as a subject in research covered by these regulations unless the investigator has obtained the legally effective informed consent of the subject or the subject's legally authorized representative.*
- *An investigator shall seek such consent only under circumstances that provide the prospective subject or the representative sufficient opportunity to consider whether or not to participate and that minimize the possibility of coercion or undue influence.*
- *The information that is given to the subject or the representative shall be in language understandable to the subject or the representative.*
- *No informed consent, whether oral or written, may include any exculpatory language through which the subject or the representative is made to waive or appear to waive any of the subject's legal rights, or releases or appears to release the investigator, the sponsor, the institution, or its agents from liability for negligence.*

¹⁵ For further information, see [section III.D](#), “Element of Informed Consent for ‘Applicable Clinical Trials.’”

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1. Exceptions to Informed Consent

Informed consent is required for participation in FDA-regulated clinical investigations except under limited circumstances as described in 21 CFR 50.23 (involving certain life-threatening situations, military operations, or public health emergencies) and 21 CFR 50.24 (involving emergency research¹⁶) (see 21 CFR 50.20). We note that, to implement statutory changes made to the Federal Food, Drug, and Cosmetic Act (FD&C) Act by section 3024 of the 21st Century Cures Act (Cures Act), FDA issued a proposed rule that, if finalized, would allow IRBs responsible for the review, approval, and continuing review of clinical investigations to approve an informed consent procedure that waives or alters certain informed consent elements or that waives the requirement to obtain informed consent for certain minimal risk clinical investigations.^{17,18} In addition, FDA issued guidance explaining that until the Agency promulgates regulations implementing the Cures Act amendments to the FD&C Act, FDA does not intend to object to an IRB approving a consent procedure that does not include, or that alters, some or all of the elements of informed consent set forth in 21 CFR 50.25, or to an IRB waiving the requirements to obtain informed consent for certain minimal risk clinical investigations under the circumstances described in the guidance.¹⁹ Nothing in FDA's informed consent regulations is intended to limit the authority of a physician to provide emergency medical care to the extent the physician is permitted to do so under applicable Federal, State, or local law (21 CFR 50.25(e)).

2. Coercion and Undue Influence

The conditions under which informed consent is sought and the relationship between the subject and the person obtaining consent should be carefully considered to minimize the possibility of coercion or undue influence (21 CFR 50.20). According to the Belmont Report, “Coercion occurs when an overt threat of harm is intentionally presented by one person to another in order to obtain compliance. Undue influence,

¹⁶ See “Guidance for Institutional Review Boards, Clinical Investigators, and Sponsors; Exception from Informed Consent Requirements for Emergency Research,” available at <https://www.fda.gov/regulatory-information/search-fda-guidance-documents/exception-informed-consent-requirements-emergency-research>.

¹⁷ See section 3024 of the Cures Act, Pub. L. 114-255, available at <https://www.congress.gov/114/plaws/publ255/PLAW-114publ255.pdf>.

¹⁸ See “Institutional Review Board Waiver or Alteration of Informed Consent for Minimal Risk Clinical Investigations,” (83 FR 57378, November 15, 2018) at <https://www.govinfo.gov/content/pkg/FR-2018-11-15/pdf/2018-24822.pdf>.

¹⁹ See “Guidance for Sponsors, Investigators, and Institutional Review Boards; IRB Waiver of Alteration of Informed Consent for Clinical Investigations Involving No More Than Minimal Risk to Human Subjects,” available at <https://www.fda.gov/regulatory-information/search-fda-guidance-documents/irb-waiver-or-alteration-informed-consent-clinical-investigations-involving-no-more-minimal-risk>.

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information has been or will be submitted for inclusion in the clinical trial registry databank under paragraph (j) of section 402 of the Public Health Service Act. The statement is: "A description of this clinical trial will be available on <https://www.ClinicalTrials.gov>, as required by U.S. Law. This Web site will not include information that can identify you. At most, the Web site will include a summary of the results. You can search this Web site at any time." (21 CFR 50.25(c))

All informed consent forms for "applicable clinical trials"⁴² initiated on or after March 7, 2012, must contain the above quoted statement, which cannot be modified (21 CFR 50.25(c)).⁴³ However, additional explanation may be provided, if appropriate. For example, with respect to clinical trials involving investigational devices, an additional statement could be added that information about device trials might not be made publicly available until after a product is cleared or approved by FDA.

E. Documentation of Informed Consent

1. Requirement for Written Documentation of Informed Consent

(a) Except as provided in § 56.109(c), informed consent shall be documented by the use of a written consent form approved by the IRB and signed and dated by the subject or the subject's legally authorized representative at the time of consent. A copy shall be given to the person signing the form. (21 CFR 50.27(a))

Informed consent must be documented by a signed and dated written consent form except under two specific circumstances as described in FDA's regulations at 21 CFR 56.109(c)⁴⁴ (21 CFR 50.27). When

⁴² For the definition of "applicable clinical trial," see 42 USC 282(j)(1)(A) and 42 CFR 11.10(a). It is the responsibility of sponsors and investigators to determine if their clinical trial meets the definition of an "applicable clinical trial" and to ensure compliance with the most current applicable statutory and regulatory requirements. Information on "applicable clinical trials" is available at <https://clinicaltrials.gov/ct2/manage-recs/fdaaa>.

⁴³ Note that this statement is not required for child assent.

⁴⁴ 21 CFR 56.109(c) states, "An IRB shall require documentation of informed consent in accordance with section 50.27 of this chapter, except as follows:

"(1) The IRB may, for some or all subjects, waive the requirement that the subject, or the subject's legally authorized representative, sign a written consent form if it finds that the research presents no more than minimal risk of harm to subjects and involves no procedures for which written consent is normally required outside the research context; or

"(2) The IRB may, for some or all subjects, find that the requirements in 50.24 of this chapter for an exception from informed consent for emergency research are met."